

No. 26-10936

IN THE UNITED STATES COURT OF APPEALS
FOR THE ELEVENTH CIRCUIT

AMERICAN SECURITIES ASSOCIATION and CITADEL SECURITIES LLC,
Petitioners,

v.

UNITED STATES SECURITIES AND EXCHANGE COMMISSION,
Respondent.

On Petition for Review of an Order
of the Securities and Exchange Commission

**TIME-SENSITIVE JOINT MOTION TO ENTER AN AGREED-UPON
BRIEFING SCHEDULE ON PETITIONERS' MOTION FOR STAY,
INCLUDING EXTENSIONS FOR CERTAIN DEADLINES**

NOEL J. FRANCISCO
Jones Day
51 Louisiana Ave., NW
Washington, D.C. 20001
(202) 879-3939
njfrancisco@jonesday.com

*Counsel for Petitioner Citadel
Securities LLC*

J. MICHAEL CONNOLLY
Consovoy McCarthy PLLC
1600 Wilson Blvd., Ste. 700
Arlington, VA 22209
(703) 243-9423
mike@consovoymccarthy.com

*Counsel for Petitioner American
Securities Association*

DANIEL E. MATRO
Securities and Exchange Commission
100 F Street, N.E.
Washington, D.C. 20549-9040
(202) 551-8248 (Matro)
matrod@sec.gov

*Counsel for Respondent Securities and Exchange
Commission*

IAN HEATH GERSHENGORN
Jenner & Block LLP
1099 New York Avenue, NW, Suite 900
Washington, DC 20001
(202) 639-6000
igershengorn@jenner.com

*Counsel for Proposed Intervenor Consolidated
Audit Trail, LLC*

**CERTIFICATE OF INTERESTED PERSONS AND CORPORATE
DISCLOSURE STATEMENT**

The undersigned counsel for Petitioners American Securities Association and Citadel Securities LLC, Respondent Securities and Exchange Commission, and Proposed Intervenor Consolidated Audit Trail, LLC hereby certify that the following listed persons and entities as described in Eleventh Circuit Rule 26.1-2 have an interest in the outcome of this case:

- 1) 24X National Exchange LLC, member of Proposed Intervenor Consolidated Audit Trail, LLC.
- 2) American Securities Association, Petitioner.
- 3) Borse Dubai Limited, owner of 10% or greater interest in Nasdaq, Inc..
- 4) BOX Exchange LLC, member of Proposed Intervenor Consolidated Audit Trail, LLC.
- 5) Boyle, Gregory, Jenner & Block LLP, counsel for Proposed Intervenor Consolidated Audit Trail, LLC.
- 6) Cboe BYX Exchange, Inc., member of Proposed Intervenor Consolidated Audit Trail, LLC.
- 7) Cboe BZX Exchange, Inc., member of Proposed Intervenor Consolidated Audit Trail, LLC.
- 8) Cboe C2 Exchange, Inc., member of Proposed Intervenor Consolidated Audit Trail, LLC.
- 9) Cboe EDGA Exchange, Inc., member of Proposed Intervenor Consolidated Audit Trail, LLC.
- 10) Cboe EDGX Exchange, Inc., member of Proposed Intervenor Consolidated Audit Trail, LLC.
- 11) Cboe Exchange, Inc., member of Proposed Intervenor Consolidated Audit Trail, LLC.

- 12) Cboe Global Markets, Inc. (BATS: CBOE), indirect owner of 10% or greater interest in Proposed Intervenor Consolidated Audit Trail, LLC, and direct or indirect parent company of Cboe BYX Exchange, Inc., Cboe BZX Exchange, Inc., Cboe EDGA Exchange, Inc., Cboe EDGX Exchange, Inc., Cboe C2 Exchange, Inc., and Cboe Exchange, Inc.
- 13) Citadel Securities GP LLC, parent company of Petitioner Citadel Securities LLC.
- 14) Citadel Securities LLC, Petitioner.
- 15) Connolly, J. Michael, Consovoy McCarthy PLLC, counsel for Petitioner American Securities Association.
- 16) Consolidated Audit Trail, LLC, Proposed Intervenor.
- 17) Consovoy McCarthy PLLC, counsel for Petitioner American Securities Association.
- 18) Deutsch, Elizabeth, B., Jenner & Block LLP, counsel for Proposed Intervenor Consolidated Audit Trail, LLC.
- 19) Dinkel, Christopher S., Jones Day, counsel for Petitioner Citadel Securities LLC.
- 20) Financial Industry Regulatory Authority, Inc., member of Proposed Intervenor Consolidated Audit Trail, LLC.
- 21) Francisco, Noel J., Jones Day, counsel for Petitioner Citadel Securities LLC.
- 22) Hardin, Tracey A., counsel for Respondent Securities and Exchange Commission.
- 23) Gershengorn, Ian Heath, Jenner & Block LLP, counsel for Proposed Intervenor Consolidated Audit Trail, LLC.
- 24) Intercontinental Exchange, Inc. (NYSE: ICE), indirect owner of 10% or greater interest in Proposed Intervenor Consolidated Audit Trail, LLC, and indirect parent company of New York Stock Exchange LLC, NYSE American LLC, NYSE Arca, Inc., NYSE National, Inc., and NYSE Texas, Inc.
- 25) International Securities Exchange Holdings, Inc., parent company of

Nasdaq GEMX LLC, Nasdaq ISE LLC, and Nasdaq MRX LLC.

- 26) Investor AB (Nasdaq Stockholm: INVE B), owner of 10% or greater of Nasdaq, Inc.
- 27) Investors' Exchange, LLC, member of Proposed Intervenor Consolidated Audit Trail, LLC.
- 28) Jenner & Block LLP, counsel for Proposed Intervenor Consolidated Audit Trail, LLC.
- 29) Jones Day, counsel for Petitioner Citadel Securities LLC.
- 30) Long-Term Stock Exchange, Inc., member of Proposed Intervenor Consolidated Audit Trail, LLC.
- 31) Lucas, Brinton, Jones Day, counsel for Petitioner Citadel Securities LLC.
- 32) Matro, Daniel E., counsel for Respondent Securities and Exchange Commission.
- 33) Marshall, Jonathan J., Jenner & Block LLP, counsel for Proposed Intervenor Consolidated Audit Trail, LLC.
- 34) McGranahan, J. Russell, counsel for Respondent Securities and Exchange Commission.
- 35) MEMX LLC, member of Proposed Intervenor Consolidated Audit Trail, LLC.
- 36) Miami International Holdings, Inc. (NYSE: MIAX), indirect owner of 10% or greater interest in Proposed Intervenor Consolidated Audit Trail, LLC, and indirect parent company of Miami International Securities Exchange LLC, MIAX Emerald, LLC, MIAX PEARL, LLC, and MIAX Sapphire, LLC.
- 37) Miami International Securities Exchange LLC, member of Proposed Intervenor Consolidated Audit Trail, LLC.
- 38) MIAX Emerald, LLC, member of Proposed Intervenor Consolidated Audit Trail, LLC.
- 39) MIAX PEARL, LLC, member of Proposed Intervenor Consolidated Audit Trail, LLC.

- 40) MIAX Sapphire, LLC, member of Proposed Intervenor Consolidated Audit Trail, LLC.
- 41) Montgomery, Sophia W., Jenner & Block LLP, Counsel for Proposed Intervenor Consolidated Audit Trail, LLC.
- 42) Nasdaq GEMX, LLC, member of Proposed Intervenor Consolidated Audit Trail, LLC.
- 43) Nasdaq, Inc. (Nasdaq: NDAQ), parent company of Nasdaq PHLX LLC, Nasdaq Texas, LLC, and The Nasdaq Stock Market LLC.
- 44) Nasdaq ISE, LLC, member of Proposed Intervenor Consolidated Audit Trail, LLC.
- 45) Nasdaq MRX, LLC, member of Proposed Intervenor Consolidated Audit Trail, LLC.
- 46) Nasdaq PHLX LLC, member of Proposed Intervenor Consolidated Audit Trail, LLC.
- 47) Nasdaq Texas, LLC, member of Proposed Intervenor Consolidated Audit Trail, LLC.
- 48) New York Stock Exchange LLC, member of Proposed Intervenor Consolidated Audit Trail, LLC.
- 49) NYSE American LLC, member of Proposed Intervenor Consolidated Audit Trail, LLC.
- 50) NYSE Arca, Inc., member of Proposed Intervenor Consolidated Audit Trail, LLC.
- 51) NYSE National, Inc., member of Proposed Intervenor Consolidated Audit Trail, LLC.
- 52) NYSE Texas, Inc., member of Proposed Intervenor Consolidated Audit Trail, LLC.
- 53) Phillips, David, Jones Day, counsel for Petitioner Citadel Securities LLC.
- 54) Rabbitt, Brian C., Jones Day, counsel for Petitioner Citadel Securities LLC.

- 55) Templin, Hannah, Jones Day, counsel for Petitioner Citadel Securities LLC.
- 56) The Nasdaq Stock Market LLC, member of Proposed Intervenor Consolidated Audit Trail, LLC.
- 57) The Vanguard Group, Inc., owner of 10% or greater interest in Cboe Global Markets, Inc., and owner of 10% or greater interest in Nasdaq, Inc.
- 58) United States Securities and Exchange Commission, Respondent.
- 59) Warnke, Anne S., Jenner & Block LLP, Counsel for Proposed Intervenor Consolidated Audit Trail, LLC.

Dated: April 7, 2026

Respectfully submitted,

/s/ Noel J. Francisco
NOEL J. FRANCISCO
Jones Day
51 Louisiana Ave., NW
Washington, D.C. 20001
(202) 879-3939
njfrancisco@jonesday.com

*Counsel for Petitioner Citadel
Securities LLC*

/s/ J. Michael Connolly
J. MICHAEL CONNOLLY
Consovoy McCarthy PLLC
1600 Wilson Blvd., Ste. 700
Arlington, VA 22209
(703) 243-9423
mike@consovoymccarthy.com

*Counsel for Petitioner American
Securities Association*

/s/ Daniel E. Matro
DANIEL E. MATRO
Securities and Exchange Commission
100 F Street, N.E.
Washington, D.C. 20549-9040
(202) 551-8248 (Matro)
matrod@sec.gov

*Counsel for Respondent Securities and Exchange
Commission*

/s/ Ian Heath Gershengorn
IAN HEATH GERSHENGORN
Jenner & Block LLP
1099 New York Avenue, NW, Suite 900
Washington, DC 20001
(202) 639-6000
igershengorn@jenner.com

*Counsel for Proposed Intervenor Consolidated
Audit Trail, LLC*

**JOINT MOTION TO ENTER AN AGREED-UPON BRIEFING
SCHEDULE ON PETITIONERS' MOTION FOR STAY**

Pursuant to Federal Rules of Appellate Procedure 26(b) and 27, and Eleventh Circuit Rules 26-1 and 27-1, Petitioners American Securities Association and Citadel Securities LLC, and Respondent Securities and Exchange Commission (“the Commission”) respectfully move this Court to enter the agreed-upon briefing schedule set forth below on Petitioners’ Motion for Stay, Dkt. 20-1 (Apr. 2, 2026). The proposed briefing schedule includes a 14-day extension of time for the Commission and any intervenors—including Proposed Intervenor Consolidated Audit Trail, LLC (“CAT LLC”)—to file oppositions to Petitioners’ stay motion, and a 7-day extension of time for Petitioners’ reply in support of their stay motion. This motion is time-sensitive because the default deadline for oppositions to the stay motion is Monday, April 13, 2026.

In support of this motion, the parties state as follows:

1. This case involves a challenge to a Commission order approving amendments to the national market system plan governing the Consolidated Audit Trail (the “CAT”). *See* Order Approving an Amendment to the National Market System Plan Governing the Consolidated Audit Trail, as Modified by the Commission, Regarding Implementation of a Revised Funding Model, Exchange Act Release No. 105003, 91 Fed. Reg. 13,410 (Mar. 19, 2026) (“2026 Funding Order”). The

amendments at issue modify the funding model for the CAT for a two-year period while the Commission undertakes a comprehensive review of the CAT.

2. On April 1, 2026, Consolidated Audit Trail, LLC (“CAT LLC”) filed an unopposed motion to intervene to defend the 2026 Funding Order. Dkt. 8 (Apr. 1, 2026). The Court has not yet ruled on that motion.

3. On April 2, 2026, Petitioners filed a motion to stay the 2026 Funding Order pending the resolution of their petition for review.

4. The Commission and CAT LLC oppose Petitioners’ stay motion. Under Federal Rules of Appellate Procedure 26(a)(1) and 27(a)(3), the current deadline for the Commission and any intervenors—including Proposed Intervenor CAT LLC—to file oppositions is Monday, April 13, 2026. Petitioners’ reply would be due seven days later, on Monday, April 20, 2026.

5. The parties have conferred and jointly request that the Court adopt a modified briefing schedule on Petitioner’s stay motion, with agreed-upon deadlines. The proposed schedule includes a 14-day extension of time for the Commission and any intervenors, including Proposed Intervenor CAT LLC, to respond to the motion and a 7-day extension of time for Petitioners’ reply in support of their motion. Under the proposed schedule, the deadline for the Commission’s and any intervenors’—including Proposed Intervenor CAT LLC’s—oppositions would be April 27, 2026, and the deadline for Petitioners’ reply would be May 11, 2026.

6. Good cause supports this request. Petitioners' stay motion presents a range of issues, including an argument that CAT itself exceeds the Commission' statutory authority, claims that the 2026 Funding Order violates the Administrative Procedure Act on various grounds, and arguments regarding irreparable harm and the balance of equities. The Commission's response will require input from a number of stakeholders within the agency and multiple layers of review. The proposed schedule will allow sufficient time for the Commission to complete the consultation, drafting, and review process, and will likewise provide Petitioners sufficient time to prepare their reply.

7. The parties thus respectfully request that the Court adopt the following schedule:

- Respondent's and any Intervenor's Opposition(s) to Petitioners' Motion for Stay: April 27, 2026
- Petitioners' Reply in Support of Motion for Stay: May 11, 2026

Dated: April 7, 2026

Respectfully submitted,

/s/ Noel J. Francisco
NOEL J. FRANCISCO
Jones Day
51 Louisiana Ave., NW
Washington, D.C. 20001
(202) 879-3939
njfrancisco@jonesday.com

*Counsel for Petitioner Citadel
Securities LLC*

/s/ J. Michael Connolly
J. MICHAEL CONNOLLY
Consovoy McCarthy PLLC
1600 Wilson Blvd., Ste. 700
Arlington, VA 22209
(703) 243-9423
mike@consovoymccarthy.com

*Counsel for Petitioner American
Securities Association*

/s/ Daniel E. Matro
DANIEL E. MATRO
Securities and Exchange Commission
100 F Street, N.E.
Washington, D.C. 20549-9040
(202) 551-8248 (Matro)
matrod@sec.gov

*Counsel for Respondent Securities and Exchange
Commission*

/s/ Ian Heath Gershengorn
IAN HEATH GERSHENGORN
Jenner & Block LLP
1099 New York Avenue, NW, Suite 900
Washington, DC 20001
(202) 639-6000
igershengorn@jenner.com

*Counsel for Proposed Intervenor Consolidated
Audit Trail, LLC*

CERTIFICATE OF COMPLIANCE

I certify that this motion complies with the type-volume limitation set forth in Federal Rule of Appellate Procedure 27(d)(2)(a) because it contains 582 words, excluding the parts of the motion exempted by Federal Rule of Appellate Procedure 32(f).

I also certify that this motion complies with the typeface requirements of Federal Rule of Appellate Procedure 32(a)(5) and the type-style requirements of Federal Rule of Appellate Procedure 32(a)(6) because it has been prepared in a proportionally spaced typeface—Garamond, 14 point—using Microsoft Word.

/s/ Daniel E. Matro

Daniel E. Matro

*Counsel for Respondent Securities and Exchange
Commission*

April 7, 2026

CERTIFICATE OF SERVICE

I hereby certify that on April 7, 2026, I electronically filed the foregoing with the Clerk of Court for the United States Court of Appeals for the Eleventh Circuit by using the Court's CM/ECF system, which will send notice to all the parties.

/s/ Daniel E. Matro

Daniel E. Matro

*Counsel for Respondent Securities and Exchange
Commission*

April 7, 2026